purchase the property well above fair market value, that Threez justifiably relied to its detriment, and that Threez gave notice of rescission on March 26, 2025. These allegations support rescission.

To qualify for declaratory relief, a party must allege (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party's rights or obligations. (Code Civ. Proc. § 1060; *Jolley v. Chase Home Finance, LLC* (2013) 213 Cal.App.4th 872, 909.) The complaint alleges an actual controversy between Threez and Pohyar concerning their respective rights and duties under the purchase agreement and the property and seeks a judicial declaration of those rights and duties.

19. 9:00 AM CASE NUMBER: C25-02227
CASE NAME: EMMA WILLS VS. LYONS MAGNUS LLC
***HEARING ON MOTION IN RE: TO APPEAR AS COUNSEL PRO HAC VICE FILED RE: WILLIAM D. MARLER**
FILED BY: WILLS, EMMA
TENTATIVE RULING:

The hearing on this motion is **vacated**. On April 16, 2026, Plaintiff filed a Request for Dismissal of the entire action with prejudice. No appearance is required on April 29, 2026.

20. 9:00 AM CASE NUMBER: C25-03523
CASE NAME: VILSON MANUSYANTS VS. MERCEDES-BENZ USA, LLC,
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: MERCEDES-BENZ USA, LLC,
TENTATIVE RULING:
Defendant Mercedes-Benz USA, LLC's Motion to Compel Binding Arbitration and Motion to Stay filed on January 5, 2026 is unopposed by Plaintiff Vilson Manusyants. Accordingly, the Motion is **granted**. This matter is stayed pending arbitration. The Court will execute the proposed order lodged on January 5, 2026. No appearance is necessary at the April 29, 2026 hearing. The Court sets a Case Management Conference for October 29, 2026 at 8:30 a.m. to follow-up on the status of arbitration. The Parties are ordered to file a case management conference statement advising the Court of the result of the arbitration. The parties may stipulate to continue this CMC if the arbitration proceedings have not concluded prior to October 29, 2026.

21. 9:00 AM CASE NUMBER: MSC19-01155
CASE NAME: JOANN BRADFORD VS. CHEVRON U.S.A. INC.
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL**
FILED BY:
TENTATIVE RULING:
Summary

Plaintiffs Joann Bradford, Liza Mosqueriola and Jason Rohrback ("Plaintiffs") move for preliminary approval of their class action and PAGA settlement with Defendant Liberty Chevron USA Inc. ("Defendant"). This Motion is **granted** as set forth herein. No appearance is required at the hearing on April 29, 2026.

Background and Settlement Terms

Plaintiffs seek preliminary approval of a $1,750,000 settlement of state wage and hour claims on behalf of a proposed class of approximately 550 current and former Operators who worked for Defendant at its Oil Refinery in Richmond, California. The class claims arise out of the core allegation that Defendant violated California's provision mandating reporting time pay by scheduling Operators for standby shifts for which they were not paid wages unless called to report to work at the refinery. Plaintiffs also aver a related claim for penalties under California's Private Attorneys General Act ("PAGA"). The Stipulation of Settlement and Release ("Settlement Agreement" or "SA"), if approved, will provide substantial relief to all members of the certified class of Operators and a reasonable payment to resolve the PAGA penalties claim. See Declaration of Aaron Kaufmann ISO Plaintiffs' Motion for Preliminary Approval of Class Action Settlement ("Kaufmann Decl.") Ex. 1 (Settlement Agreement). In addition to the payment of the settlement amount, Chevron reformed the challenged policy as of May 31, 2022 and has been paying Operators for standby shifts for nearly four years. See Declaration of Alexander Nazarov ISO Plaintiffs' Motion for Preliminary Approval of Class Action Settlement ("Nazarov Decl.") ¶ 4.

The Gross Settlement Amount, $1,750,000, contemplated under the terms of the Settlement Agreement represents approximately 44.8 percent (44.8%) of the aggregate reporting time pay incurred by the certified class and approximately 26.7 percent (26.7%) recovery on the maximum value of the class claims, exclusive of Plaintiffs' attorneys' fees.

The proposed settlement would cover the class of individuals employed by Defendant at the oil refinery in Richmond, California who were assigned unpaid standby shifts between November 26, 2019 through May 30, 2022.

The class members are projected to receive a pro rata share of approximately $838,166.67, which is the Net Settlement Amount ("Class Fund" in the Settlement Agreement) after the Gross Settlement Amount of $1,750,000 is reduced by payments to the California Labor & Workforce Development Agency ("LWDA") to resolve the PAGA penalty claims, attorneys' fees and costs, Class Representative service awards, and settlement administration fees. SA, ¶¶ II.B.3, D.3, F.1; Kaufmann Decl. ¶ 9. The Net Settlement Amount will then be disbursed as Individual Settlement Shares to Class Members based on the number of workweeks each was employed during the Class Period, as reflected in Defendant's records. SA, ¶ II.D.3. These settlement shares will represent compensation for each Class Member's potential accrued reporting time pay and interest thereon, waiting time penalties under Labor Code section 203, penalties for pay statement violations under Labor Code section 226, and their share of PAGA penalties. The parties have agreed that 40 percent (40%) of the settlement shares to Class Members is attributable to wage claims and sixty percent (60%) attributable to interest and statutory penalties.

The parties have agreed to allocate $25,000 to resolve the PAGA penalty claim. SA, ¶ II.B.16, E.3. In accordance with the PAGA, Labor Code section 2699(i), Defendant will pay the LWDA $18,750 (75 percent of a $25,000 PAGA penalty allocation). II.E.3. The parties will provide a copy of the Settlement Agreement to the LWDA contemporaneously with the filing of this motion. See Cal. Labor Code § 2699(1)(2)

The Settlement Agreement permits Class Counsel to apply for an award of attorneys' fees and costs in an amount up to $533,333.33 (one-third of the Gross Settlement Amount), SA, ¶ II.D.4. which is approximately just 16.4 percent (16.4%) of their collective lodestar as of December 31, 2025. Kaufmann Decl. ¶ 14; Nazarov Decl. ¶ 6. In addition, Class Counsel may seek reimbursement of up to $270,000 for out-of-pocket expenses paid to directly advance the subject litigation.

The Settlement provides that the three Plaintiffs may petition the Court for class representative service awards of up to $10,000 each, representing $30,000 in the aggregate. SA, ¶ II.D.6. This is in addition to any distribution to which they may otherwise be entitled to as Class Members. These amounts are to compensate the Plaintiffs for (1) the significant time and effort they have spent on behalf of the Class, including assisting in the investigation, participating in extensive discovery, consulting with counsel regarding all aspects of the litigation and settlement, and conferring on the settlement, and (2) the risk incurred by suing a current of former employer, a fact that is easily obtainable through the Court's records.

The Court has reviewed the proposal to retain CPT Group, Inc. to serve as settlement administrator and has reviewed the proposed distribution plan.

Analyses

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction … to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC,* supra, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal's decision in *Moniz v. Adecco USA, Inc*. (2021) 72 Cal.App.5th 56, provided guidance on this issue. In Moniz, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (Id., at 64.) The Court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (Id., at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; Timney v. Lin (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that Neary does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

The Settlement Agreement provides that Class Counsel may petition the Court for an award of fees not to exceed one-third of the Gross Settlement Amount as their Class Counsel Fees Payment, or $583,333.33 in addition to litigation expenses up $270,000. Essentially, Class Counsel seeks one-third of the total settlement amount as fees, relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International (*2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (Id., at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval. Counsel are directed to prepare a lodestar fee estimate for the motion for final approval.

The reasonableness of litigation costs and the settlement administrator's fees will be considered at final approval. Similarly, the requested representative payment of $10,000, each, for the named Plaintiffs will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

After reviewing the foregoing, and applying the relevant statutory and decisional authorities, the Court finds good cause to grant the motion for preliminary approval.

Ruling

Good cause, therefore appearing, the Court finds, orders and rules as follows:

(1) The Court **grants** the Motion for Preliminary Approval of Class Action Settlement and the settlement agreement, attached as Exhibit 1 to the accompanying Declaration of Aaron Kaufmann in support of Plaintiffs' Motion for Preliminary Approval of Class Action Settlement ("Settlement Agreement");
(2) The Court approves the proposed Notice of Class Action Settlement;
(3) The Court appoints CPT Group as Settlement Administrator;
(4) The Court setting a deadline for Plaintiffs to file a motion for final approval, including a request for approval of attorneys' fees and litigation expenses, class representatives' service awards and the PAGA Settlement. That deadline is 180 days from the date of this order, subject to extension by stipulation and proposed order.
(5) The Court orders the Plaintiffs to file Motion for Final approval of the Settlement Agreement, approval of the PAGA Settlement incorporated in the Settlement Agreement, and approval of attorneys' fees, litigation expenses, and class representative service awards no later than 180 days from the date of this order, subject to extension by stipulation and proposed order.

(6) Subject to foregoing, the Court will execute the proposed order lodged by Plaintiffs on March 4, 2026. Counsel is ordered to serve notice of entry of the order to the service list.

Discovery Law & Motion

22. 9:01 AM CASE NUMBER: C25-01464
CASE NAME: THREEZ INVESTMENTS, INC. VS. AMAN POHYAR
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DISCOVERY**
FILED BY: THREEZ INVESTMENTS, INC.
****TENTATIVE RULING:****
Summary:

Plaintiff Threez Investments, Inc's ("Plaintiff") Motion to Compel Further Responses to Discovery and for Monetary Sanctions to be imposed on Defendant is **unopposed**, and is therefore, **granted**. Plaintiff filed a Motion to Compel Further Responses to Discovery on Defendant Aman Pohyar ("Defendant") on February 5, 2026. The Motion was supported by Notice, Amended Notice, Memorandum of Points and Authorities and Declaration of Counsel Mu. No timely responses to this Motion was filed by Defendant. No appearance is required at the hearing on April 29, 2026.

Analyses

The Court is aware that Defendant is proceeding without an attorney in his lawsuit. However, a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation."); see also *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121 (self-represented parties are held to "the same 'restrictive procedural rules as an attorney'"). Self-represented litigants are not entitled to special treatment and are required to follow the procedural rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, "'[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.' [Citation.] When one party has counsel and the other does not, the trial court 'should monitor to ensure the in propria persona litigant is not inadvertently misled, either by the represented party or by the court. … [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.'" *Petrosyan v. Prince Corp*. (2013) 223 Cal.App.4th 587, 594.

Applied here, there is no evidence that Defendant was misled by the Court or by Plaintiff. Indeed, the declaration filed by Plaintiff's Counsel indicate that she took reasonable steps to meet and confer with Defendant regarding his obligation to provide further responses to discovery and was aware of the deadlines, and did not serve further responses. He also did not oppose this Motion.

Plaintiff's Failure to File Opposition is Deemed to be Consent to the Motion

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent